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EUROPEAN
COMMISSION

Brussels, XXX
PLAN/1049/2026
(POOL/E4/2026/1049/1049-EN.docx)
[…](2026) XXX draft

COMMISSION IMPLEMENTING DECISION (EU) …/…

of XXX

not renewing the approval of bromoacetic acid as an active substance for use in biocidal products of product-type 4 in accordance with Regulation (EU) No 528/2012 of the European Parliament and of the Council

(Text with EEA relevance)

COMMISSION IMPLEMENTING DECISION (EU) …/…

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not renewing the approval of bromoacetic acid as an active substance for use in biocidal products of product-type 4 in accordance with Regulation (EU) No 528/2012 of the European Parliament and of the Council

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) No 528/2012 of the European Parliament and of the Council of 22 May 2012 concerning the making available on the market and use of biocidal products[1], and in particular Article 14(4), first subparagraph, point (b), thereof,

Whereas:

(1) Bromoacetic acid is an existing active substance, which was approved as an active substance for use in biocidal products of product-type 4 by Commission Implementing Regulation (EU) No 1032/2013[2] subject to the conditions set out in the Annex to that Regulation.

(2) On 22 December 2023, an application was submitted in accordance with Article 13(1) of Regulation (EU) No 528/2012 for the renewal of that approval, which was to expire on 30 June 2025.

(3) Commission Implementing Decision (EU) 2025/360[3] postponed that expiry date to 31 December 2027, to allow sufficient time for the examination of the application for the renewal.

(4) On 8 April 2026, the applicant for the renewal of the approval of bromoacetic acid for use in biocidal products for product-type 4 informed the evaluating competent authority of Spain that it withdrew that application.

(5) As it has not been established that bromoacetic acid for use in biocidal products of product-type 4 still meets the conditions laid down in Article 4(1) of Regulation (EU) No 528/2012, it is appropriate not to renew the approval.

(6) A period of time should be set concerning the placing on the market of treated articles, treated with or incorporating bromoacetic acid for use in biocidal products of product-type 4, in order to allow sufficient time for economic operators to adapt.

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1 OJ L 167, 27.6.2012, p. 1, ELI: http://data.europa.eu/eli/reg/2012/528/oj.

2 Commission Implementing Regulation (EU) No 1032/2013 of 24 October 2013 approving bromoacetic acid as an existing active substance for use in biocidal products for product-type 4 (OJ L 283, 25.10.2013, p. 22, ELI: http://data.europa.eu/eli/reg_impl/2013/1032/oj).

3 Commission Implementing Decision (EU) 2025/360 of 21 February 2025 postponing the expiry date of the approval of bromoacetic acid for use in biocidal products of product-type 4 in accordance with Regulation (EU) No 528/2012 of the European Parliament and of the Council (OJ L, 2025/360, 25.2.2025, ELI: http://data.europa.eu/eli/dec_impl/2025/360/oj).

(7) The measures provided for in this Decision are in accordance with the opinion of the Standing Committee on Biocidal Products,

HAS ADOPTED THIS DECISION:

Article 1

The approval of bromoacetic acid as an active substance for use in biocidal products of product-type 4 is not renewed.

Article 2

Treated articles treated with or incorporating bromoacetic acid for use in biocidal products of product-type 4 shall not be placed on the market as from [*OP: please insert the date corresponding to 180 days after the entry into force of this Decision*].

Article 3

This Decision shall enter into force on the twentieth day following that of its publication in the *Official Journal of the European Union*.

Done at Brussels,

For the Commission
The President
Ursula Von der Leyen